

Disposition

Plaintiff's motion is granted.

Plaintiff to file Order.

2. 9:00 AM CASE NUMBER: L24-02704

CASE NAME: LVNV FUNDING LLC VS. NICOLE MUNOZ

***HEARING ON MOTION IN RE: MOTION AND MOTION TO VACATE DEFAULT JUDGMENT**

FILED BY: MUNOZ, NICOLE

TENTATIVE RULING:

Background

Defendant filed a Motion to Vacate Default Judgment (Motion) on December 18, 2025, with an accompanying proof of service by mail, filed on December 22, 2025, indicating service on December 19, 2025, on Plaintiff who has a mailing address out of state. The hearing is scheduled for January 20, 2026.

The Motion is unopposed, yet the service does not appear to be timely. Section 1005 of the CCP requires notice of 16 court days for motions, and Section 1013 requires an additional 10 calendar days for mail service on parties outside of California. This would leave January 26, 2026, as the earliest date this motion could be heard (January 24th, which is a Saturday, is technically the first day after 16 court days and 10 calendar days).

Disposition

The Motion will be continued approximately 30 to 60 days to enable Plaintiff to respond.

3. 9:00 AM CASE NUMBER: L24-05975

CASE NAME: LOAN ASSET ISSUER LLC SERIES 2021 M 2 VS. CRISTINA PITA

***HEARING ON MOTION IN RE: FOR ORDER DEEMING EACH REQUEST FOR ADMISSIONS ADMITTED; AND REQUEST FOR SANCTIONS**

FILED BY: LOAN ASSET ISSUER LLC SERIES 2021 M 2

TENTATIVE RULING:

Plaintiff filed, on November 3, 2025, Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion). Plaintiff also seeks sanctions in the amount of \$60. Plaintiff attached a proof of service.

No response has been filed by the Defendant.

Background

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of

any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777.

Analysis

In this matter, while Plaintiff did not include the particular admissions at issue in their moving papers, they did include them in Exhibit A of their Proposed Order, which was timely filed and served on the Defendant. Moreover, the Proposed Order included proof of service indicating that Plaintiff properly served Defendant with the initial Request for Admissions.

Moreover, the Plaintiff included a declaration justifying the sanction amount of \$60.

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit One of Plaintiff's Proposed Order (filed November 3, 2025) shall be deemed admitted.

Plaintiff to draw and electronically file Order.

4. 9:00 AM CASE NUMBER: L24-09645

CASE NAME: WELLS FARGO BANK, N.A. VS. RAMIRO FLORES

***HEARING ON MOTION IN RE: FOR JUDGMENT ON THE PLEADINGS; MPA; REQ FOR JUDICIAL NTC; NTC OF LODGING; JUDGMENT**

FILED BY:

TENTATIVE RULING:

Plaintiff filed a Motion for Judgment on the Pleadings on October 13, 2025, (Motion), as well as a Request for Judicial Notice (Judicial Notice). The Motion is unopposed.

Background

The Motion for Judgment on the Pleadings is based on the contention that the operative complaint states facts sufficient to constitute a cause of action and the answer does not state facts sufficient to constitute a defense. Plaintiff contends that Defendant admits all statements in the complaint are true and that Defendant owes the alleged debt.

While Plaintiff addressed more than one cause of action in their Motion, this court notes that there is only one cause of action (Breach Of Contract) listed in the Complaint.